EFF's State Legislative Agenda to End ALPR Mass Surveillance

Police agencies across the U.S. have deployed Automated License Plate Readers (ALPRs) to capture images of passing vehicles along with time, date, and GPS coordinates. While the technology itself isn't new (ALPRs have existed in various forms for more than 50 years, and in the U.S. since 1998), the surveillance landscape has shifted dramatically. Rapid advances in artificial intelligence and national data sharing have transformed police ALPRs into an interconnected, nationwide tracking network. It is pitched to city councils by law enforcement and private vendors like Flock Safety, Motorola Solutions (Vigilant), and Axon as an essential tool for solving violent crime.

In reality, it is an inherently dangerous infrastructure of mass surveillance.

Since 2012, EFF has worked with others to expose the severe digital rights harms of ALPR systems. For example, we've recently documented how these camera networks allow law enforcement to search for immigrants, track peaceful protesters, target Romani communities, and track women seeking reproductive healthcare. Police also routinely use ALPRs for low-level matters like enforcing school residency requirements or investigating noise complaints. Many officers also use ALPR databases to stalk past romantic partners. Recent EFF analysis revealed officers using the system without legitimate justification —logging search reasons like "LOL" and "LMAO."

Understandably, the public backlash to police ALPR technology is accelerating, and state lawmakers across the country are taking action.

New Hampshire enacted the nation's first state law on ALPR use in 2007, but technological advances and misconduct have driven even more recent

legislative action. In 2026 alone, six states enacted laws that limit police use of ALPRs: Connecticut, Kentucky, New Jersey, New Mexico, Oregon and Washington.

This is a good start, but far more is needed. This blog presents a framework for state legislators who want to stop ALPR mass police surveillance:

1. Just ban it. It is incompatible with a free society and cannot be fixed.
2. In the absence of a flat ban, reduce its harms. Most importantly: limit police use of ALPRs to real-time comparison of passing plates to hotlists; require a warrant to place a plate on a hotlist; impose strict limits on the creation and use of those hotlists; and prohibit the storage of ALPR data (and thus prevent the subsequent search and disclosure of that data).
3. In the absence of a prohibition on storing ALPR data, reduce its harms. Most importantly, place strict limits on police storage, search, and disclosure of ALPR data.
4. Ban three especially dangerous police practices: placement of ALPRs near sensitive locations like hospitals; purchase of ALPR data; and use of ALPR data to try to predict crime.
5. Require transparency about ALPR mass surveillance, including: a 30-day public notice before a city procures police ALPRs; a statewide registry of all police ALPRs; and regular, public audits and statistical reports about police usage.
6. Ensure effective enforcement of all new ALPR restraints, including by means of a private right of action and the exclusionary rule.

These policy battles often unfold locally, so state legislators must ensure that state law is a regulatory floor, never a ceiling. State preemption should never force unwanted camera networks onto communities that have chosen to reject them. Local government must retain authority to enact full bans, deny funding, reject contracts, and decommission existing camera networks.

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A Note on Scope

As in our previous post on ALPR policy, our focus here is ALPR mass surveillance: the continuous dragnet collection and retention of location data on innocent drivers. Different issues are raised by automated traffic enforcement (ATE) systems, such as standalone red-light or speed cameras that solely photograph and ticket specific traffic violations, without building a searchable network about uninvolved drivers. As such, state laws against ALPR mass surveillance should not cover ATE. This is the approach in at least six states: Connecticut, Minnesota, North Carolina, Oregon, Virginia, and Washington. The most common approach is to exclude ATE from the law's definition of "ALPR."

Of course, ATE carries risks and demands legal restrictions too. This includes tight limits on data collection, retention, usage, and disclosure—all of which should be addressed in a different statute. Lawmakers must also actively guard against vendor efforts to piggyback mass surveillance tools onto ATE contracts.

The Gold Standard: Statewide Bans on ALPR Mass Surveillance

Statutory limits cannot make ALPR mass surveillance safe. Because the technology relies on the indiscriminate recording of every driver's movements, the risks are baked into the system itself. Also, innocent motorists will be menaced by police due to false matches, bad actors will misuse location data, and sensitive personal movements will be exposed to broad government overreach. Promising harsher penalties for officer misuse cannot fix an inherently flawed architecture. Thus, state lawmakers should pursue a complete, statewide ban on ALPR mass surveillance.

First, lawmakers should prohibit all state-level law enforcement agencies from acquiring, retaining, accessing, or using ALPRs or any data derived from them.

Second, they must impose the same prohibition on county, municipal, and other local law enforcement agencies.

These prohibitions should require any agency ending an ALPR program (both state and local) to fully decommission the programs within a strict timeframe. This includes requiring agencies to: physically remove all camera hardware; revoke all user, network, and database access credentials; permanently delete all stored location data; and require vendor certification of compliance.

Third, ban the use of state funds for state or local agencies to acquire, maintain, or access ALPR systems. This must include direct appropriations, law enforcement grants, pass-through funds, and state-administered federal funds. In August 2026, Texas Governor Greg Abbott banned state agencies from spending public funds on Flock cameras.

Fourth, ban state and local agencies from installing or operating ALPRs on state-owned highways, roadways, or public properties. In August 2026, Florida's Department of Transportation ordered the removal of all ALPRs from the right-of-way on state highways within 30 days. The order revokes all previously approved permits to install ALPRs, and bars future permits.

An outright prohibition is the only effective way to eliminate this mass surveillance. This follows the lead of municipalities across the country that have already enacted bans. However, where there's political resistance, state lawmakers might consider a moratorium that prevents further expansion of ALPR networks.

Strict Limits on Real-time Use of ALPRs

In the absence of a ban on police ALPR mass surveillance, state legislators must restrict ALPRs to real-time comparison of passing plates to hotlists. ALPR data is simply too dangerous for police to safely store, search, and disclose. An effective way to do this, as in New Hampshire, is to require deletion of ALPR data within three minutes after collection. That means no ALPR data is stored after comparison to a hotlist, and thus that no ALPR data about unmatched cars can be searched or disclosed.

A state legislature must also reduce the harms of police use of real-time ALPRs by strictly limiting the creation and use of law enforcement hotlists.

Limits on creating hotlists

Roughly speaking, there are two kinds of police hotlists. An agency might link its ALPRs to external hotlists created by another agency, such as the FBI's National Crime Information Center (NCIC) or a state's department of motor vehicles. Also, a police agency might link its ALPRs to its own internal hotlist, created by its own officers, of people under investigation. State legislators must strictly limit both.

First, limit the kinds of external hotlists that police agencies may link to. For example, ban police agencies from linking to the NCIC's "immigration violator" hotlist, which ICE uses to hunt immigrants with the ALPRs operated by police agencies across the country.

Second, if a police agency links to external hotlists, require the agency to update that link every day. Otherwise, drivers may be detained even though they have been removed from the list. This is required by Montana, Nebraska, North Carolina, and Virginia.

Third, forbid officers from adding a plate on a hotlist, absent a warrant from a judge based on probable cause and particularity. Without this judicial check on police power, an officer stalked a potential romantic partner by placing her plate on a hotlist.

As with other laws requiring a warrant (such as the federal Wiretap Act), there should be an exception where: (1) there is an emergency involving immediate danger of death or serious bodily injury to a person; (2) there is no time to acquire a warrant; and (3) there are grounds upon which a warrant could be granted. This exception might apply, for example, when police have probable cause to believe a child has just been abducted. In such cases, the statute must require police to seek a warrant within 48 hours, and if it is denied, to immediately remove the plate from the hotlist.

Minnesota requires a warrant or an emergency to use ALPRs "to monitor or track an individual who is the subject of an active criminal investigation." In Maine, an ALPR system may use only information based on reasonable suspicion.

Fourth, forbid officers from adding a plate to a hotlist, except in connection with a serious violent crime. This would include investigation of a murder but not pursuit of a traffic scofflaw.

Fifth, forbid officers from adding a plate on a hotlist based, in whole or in part, on: a person's race, ethnicity, national origin, religion, immigration status, disability, sex, gender identity, or sexual orientation; their political beliefs, associations, or participation in First Amendment-protected activity; or their pursuit of reproductive, gender-affirming, or other health care. Connecticut and Washington forbid use of ALPR systems on these grounds, and Virginia forbids tracking a person based on their protected speech.

Sixth, require officers to log their entry of a plate into a hotlist. This must include the officer's name and agency, the date of the entry, a narrative description of the reasons for the entry, any case numbers, and an upload of the warrant authorizing the entry. Oregon requires an officer to log "the specific law enforcement purpose of the entry," and the officer's name.

Limits on using hotlists

First, if the plate of a passing car does not match a hotlist, laws must require immediate deletion of all ALPR data about that car. New Hampshire state law requires deletion within three minutes. This is the most effective way to limit ALPRs to real-time identification of vehicles and drivers of interest to police, as opposed to amassing a dangerous database of the comings and goings of the entire driving public, available later for retrospective search by police.

Second, if the plate of a passing car does match a hotlist, then limit storage, search, and disclosure of its ALPR data to what is strictly necessary to the investigation that placed the car on the hotlist.

Third, require police officers, before stopping a car because of an apparent real-time match, to visually and independently confirm that the car's plate number, plate issuing state, and other vehicle characteristics in fact do match the car on the hotlist. Many innocent motorists have been detained and menaced by police because of ALPR false positives. Confirmation is required by Kentucky, Montana, New Hampshire, Oregon, Virginia, and Washington.

Strict Limits on Storage, Search, and Disclosure of ALPR Data

Again, state legislatures should simply ban police use of ALPRs, or at least police storage of ALPR data. Third best is harm reduction through strict limits on storage, search, and disclosure of ALPR data.

Storage limits

First, limit the storage period for ALPR data to days, not months, and then require deletion. More than 99% of the drivers who pass an ALPR are not on a hotlist. Tracking their movements anyway, just in case they are later relevant to a police investigation, is criminalization of the entire driving population. Thus, four states already require deletion after 21 days: Connecticut, Maine, Virginia, and Washington. Even Flock has reduced its default retention period to seven days.

By "delete," we mean permanently erase it, so it is impossible for anybody to access it again. It is not enough to merely store it in a way that makes it harder to access, such as archiving it, or transferring it from one database to another. In the words of the Virginia statute: "System data shall be purged … in such a manner that such data is destroyed and not recoverable."

Second, limit the types of ALPR data that can be stored: just a photo of the plate, the AI-based read of the plate number, the date and time, and the location. Conversely, ban retention of photos of people in the car, and of features of the car beyond the plate as well as AI-based reads of those photos (respectively, "facial recognition" and "vehicle fingerprints").

Many states have enacted such rules. New Hampshire bans ALPRs from "photographing or recording or producing images of the occupants of a motor vehicle." Missouri bans integration of facial recognition into ALPR systems. New Hampshire and Montana limit ALPRs to "the sole purpose of recording and checking license plates." Minnesota provides that "data collected by an [ALPR] must be limited to" plate numbers; date, time, and location; and pictures of plate, vehicle, and surrounding area.

Search limits

First, laws should ban "geofence" searches, which are searches in which police use ALPRs to identify all of the drivers present at a particular time and place, based on police claims that one of them might be the suspect they are looking for. Even a warrant cannot justify such general searches, because the Fourth Amendment requires warrants to "particularly" describe the person or car being investigated. These dragnet searches of stored ALPR data are the modern-day equivalent of the colonial-era "writs of assistance," against which our founders fought a revolution to end.

Second, laws should forbid officers from searching stored ALPR data, unless they first acquire a warrant from a judge based on probable cause and particularity. The constant revelations of bad police searches of ALPR data demonstrate the need for—at the very least—judicial control over this dangerous surveillance technology. A federal judge in Oklahoma recently held that the constitution requires this judicial control, because ALPR mass surveillance invades reasonable expectations of privacy. EFF has filed lawsuits making this demand in California and Wisconsin, along with local ACLU affiliates: *SIREN and CAIR-CA v. San Jose*, and *Wisconsin Council of Churches v. Milwaukee, Racine, Kenosha, and Green Bay*.

Three states (Minnesota, Vermont, and Virginia) require reasonable suspicion of a crime before searching ALPR data, and a fourth state (California) requires this from its highway patrol. This is a step in the right direction, but not enough: the decider must be a judge, and the test must be probable cause.

Third, officers should be prohibited from searching stored ALPR data, unless they are investigating a serious violent crime. On the flip side, ban searches for immigrants, protesters, or traffic scofflaws.

Some states have moved in this direction. Missouri limits use of ALPR data "criminal justice" and "lifesaving efforts." North Carolina bans its use for traffic enforcement. Connecticut bans its use based on race and other protected classes, to identify First Amendment activity, for immigration enforcement, or because of access to reproductive or gender-affirming health care. Idaho bans its use for political activity.

Fourth, police officers must be required to log their searches of stored ALPR data concerning a particular car. This must include the officer's name and agency, the date and time of search, a narrative description of the reasons for search, any case numbers, and an upload of the warrant authorizing the search. The officer must write the narrative in their own words. A drop-down menu of reasons is no substitute, because it is too easy for officers to dodge an explanation of the actual reasons by clicking a pre-written "reason."

Many states require officers to log their searches of ALPR data, including California, Connecticut, Idaho, Maryland, Missouri, Montana, New Hampshire, Oregon, and Virginia. In Virginia, this must include an officer's documentation of both their "specific purpose" to search, and the "associated call for service or case number."

Disclosure limits

The "disclosure" limits below must broadly address sharing from an agency that collected ALPR data to another entity. This includes an agency opening its database to access and search by another entity. It also includes an agency transferring data from its database to another entity's database.

First, ban disclosure of ALPR data to any federal or out-of-state agency. Federal and out-of-state agencies often lack the necessary protections of the driving public. Connecticut forbids disclosures to the federal government or agencies in 46 states, unless they have a warrant. California forbids disclosures, unless otherwise permitted by law.

Second, ban disclosure of ALPR data to another agency, unless it follows all of the rules above for an agency's search of its own data (that is, the ban on geofence searches, the requirement of a warrant, the limitation to investigation of serious violent crimes, and the requirement of an audit trail).

Some states have taken steps in this direction. Utah requires, as a condition of disclosure to a government entity or a defendant in a criminal case, a court order finding reasonable suspicion of crime. Washington forbids disclosure "except as required in a judicial proceeding." Minnesota and Virginia require the disclosing agency to find reasonable suspicion. Minnesota and Connecticut forbid disclosure unless the receiving agency follows the rules applicable to the disclosing agency.

Third, place strict limits on participation in a multi-agency disclosure network, such as Flock or Vigilant. Connecticut forbids participation "in a system or network that shares" ALPR data, unless it requires all participants to affirm in writing that they will not use or re-disclose that state's data except in compliance with that state's laws. Connecticut also forbids "bulk" data disclosure, and Maryland forbids data "upload" to another agency.

Fourth, ban disclosure of ALPR data for purposes of investigating acts and statuses that are lawful in-state. Three states (Illinois, New Jersey, and New Mexico) forbid disclosure to investigate immigration status. Two states (Illinois and New Mexico) forbid disclosure in investigate healthcare that is lawful in-state. One state (New Mexico) forbids disclosure to investigate protected assembly, petition, and speech.

Fifth, ban any sale of ALPR data. Six states do this: Arkansas, Maryland, Oklahoma, Utah, Virginia, and Washington. California forbids its highway

patrol from doing so. New Mexico forbids any disclosure to a private entity (or indeed to any non-law enforcement agency). Data brokers are a menace to privacy and other human rights.

Transparency

State lawmakers must ensure that the public has access to ample information about the ALPR mass surveillance in their communities. Many people will use this information to resist ALPRs.

First, state laws should require local governments to provide at least 30 days of public notice before spending funds, accepting grants or private donations, or entering into any contract or pilot program for ALPR technology. All proposed vendor contracts and funding sources must be publicly disclosed prior to approval. This helps local officials to exercise their procurement power to reject ALPRs.

Second, laws should mandate the creation of a centralized, public-facing state registry of all police agencies using ALPRs, and the specific locations of all police ALPRs. Sources like DeFlock and EFF's Atlas of Surveillance include crowd-sourced maps of ALPR technologies, but they are not exhaustive. This was one of the provisions in Minnesota Minn. Stat. § 13.824, which in part, requires police agencies to notify the state within 10 days of installing any ALPR, and requires a state agency to aggregate this information and publish a master list of the locations of all ALPRs (unless a judge determines that disclosure of a particular ALPR's location poses a genuine security risk).

Third, mandate regular, independent, public audits of agency ALPR use, access logs, and query justifications to ensure compliance with all applicable laws and policies. Five states (Idaho, Minnesota, Montana, Virginia, and Washington) require regular audits, ranging in frequency from monthly to biennial. Three states (Idaho, Maryland, and Washington) require audits of access logs. Minnesota requires an independent auditor and public access to the results.

Fourth, laws must require each agency operating an ALPR system to publish regular reports on its website detailing key operational metrics. Six states require such reports annually: Connecticut, Maryland, New Hampshire, New Mexico, and Vermont. Arkansas requires them twice per year, and Oregon requires them monthly. These states variously require reporting of: the number of ALPRs, and a list of the locations of fixed ALPRs; the number of hotlists used, and a list of them; the number of plates scanned; the number of apparent

matches to hotlists, and how many were actual matches; the number plate reads stored; and the number of searches of stored data, broken down by the purpose and agency of search.

Finally, any new ALPR legislation must maintain a proper balance between transparency and privacy in the use of public record acts (PRAs) to obtain ALPR information. Public records and public scrutiny of ALPR programs have shown that people are harmed by these systems. So lawmakers should not cut off access to public records that document these abuses. For example, the public should have access to operational policies, audit logs, vendor communications, and aggregate statistics. EFF opposes blanket exemptions from PRAs that block public oversight of APRs—such as recent bills in states like Arizona. The better approach to protecting individual location privacy is a flexible, case-by-case balancing test already provided by many PRAs. Also, when a document contains both exempt and non-exempt information—like an audit log that contains both motorists' plate numbers and officers' search reasons—open records laws should require disclosure of the latter while withholding of the former.

Additional Restrictions

State lawmakers should adopt three additional bans to curtail the footprint of police ALPR surveillance.

First, ban the placement of ALPRs or the collection of ALPR data near healthcare facilities, immigration services, schools, places of worship, courthouses, food banks, and other sensitive locations. Washington and Connecticut do this.

Second, ban police from purchasing ALPR data. Utah and Washington do so. Also, prohibit police from acquiring ALPR data from a private entity, except by means of a warrant. Washington does so. Utah took a step in this direction, requiring a court order based on reasonable suspicion. Absent this type of rule, police evade limits on seizing data from third parties by simply purchasing it from brokers.

Third, ban police and their vendors from using ALPRs or stored ALPR data to power predictive policing technology. EFF opposes such technology and urges state legislatures to ban it. ALPR companies have been providing law enforcement clients with an "analytics" feature, which ingests data from across police agencies, and produces a report of alleged crime trends, hotspots, and

corridors. State legislators should prohibit this dangerous use of ALPR systems and data.

Enforcement

A law without strong enforcement is just a piece of paper. EFF recommends three kinds of enforcement measures, all of which appear in existing ALPR statutes.

First, all privacy laws need a "private right of action," meaning ordinary people can sue a police department that breaks the law. An excellent model appears in the federal Wiretap Act. It expressly authorizes a lawsuit by "any person" whose personal information is processed "in violation of" this law. Privacy harm is harm, and so a person should have their day in court, even if they cannot prove a collateral harm, such as physical injury or economic loss. Moreover, the Wiretap Act provides a full arsenal of remedies to a successful plaintiff, including injunctive and declaratory relief, liquidated and actual damages, and attorney fees.

At least three states enforce their ALPR statute with some version of a private right of action. These are good first steps but need improvement. Washington comes closest: it allows suit to enforce all ALPR rules and provides all remedies. Unfortunately, the plaintiff must prove "injury," which may shut the courthouse doors to some people whose data is unlawfully processed. Connecticut allows suit by a person "aggrieved" by violation of some ALPR rules. But a person should be able to enforce all rules, and should not have to prove they were aggrieved. Oregon allows suit against a police vendor that "intentionally or with gross negligence" uses or discloses ALPR data in an unlawful manner. But this does not allow any suit against police, or even against a vendor that systematically violates the rules through ordinary negligence.

Second, privacy laws applicable to the police commonly ensure enforcement through the "exclusionary rule." This means that if evidence is gathered in violation a privacy law, it must be excluded from court proceedings. This is sometimes called "suppression" or "inadmissibility." The federal Wiretap Act has a strong version of this rule, clearly excluding evidence derived from violations of all rules. The so-called "good faith" exception has weakened many exclusionary rules, so ALPR statutes should expressly reject this exception (though some courts have interpreted some statutory exclusionary rules to have no good faith exception).

At least three states enforce their ALPR statute with some version of the exclusionary rule. Again, these are good first steps but need improvement:

- Virginia comes closest: "Any evidence obtained as a result of a violation" of some of the ALPR rules "is not admissible." A better rule would apply to all ALPR rules.
- Connecticut provides that ALPR data "may be admissible … provided such data was collected or otherwise acquired or held or stored in accordance with the provisions of this section" (or obtained pursuant to warrant). A more clear exclusionary rule would "exclude evidence unlawfully processed," as opposed to "admit evidence lawfully processed." The exclusionary rule should also extend to data unlawfully used or disclosed (and not just to data unlawfully collected or stored).
- Washington provides that information obtained from "a knowing violation" of some of the statute's rules is "inadmissible." But the exclusionary rule should apply to all substantive limits (not just some), and to all violations (not just knowing ones).

Third, police agencies and their private contractors that recurringly violate ALPR rules should be forbidden from using ALPRs at all. In New Hampshire, if an agency "repeated[ly]" violates the ALPR statute, the state department of justice may "seek an injunction banning [its] use" of ALPRs. In New Mexico, if a vendor "fails to comply with" that state's ALPR law, it "may be subject to … suspension of authorization or termination of access."

Some states impose workplace discipline or criminal penalties on officers who violate ALPR laws, including Connecticut, Idaho, and Missouri. This is no substitute for the three types of strong enforcement measures above. ALPRs are a systemic problem requiring institution-wide enforcement of legal constraints, and not just episodic sanctions against individual officers.

Conclusion

Mass surveillance ALPRs fundamentally threaten digital rights, making an outright statewide ban on police ALPRs the only effective way to fully protect privacy and safety. The next best thing a legislature can do is limit ALPRs to real-time comparison of passing cars to hotlists, by banning storage of ALPR data beyond a few minutes. If a legislature allows storage, it must impose a tight deletion deadline (days and not months), and strict limits on search and disclosure. A legislature must also ensure transparency and enforcement.

For convenience here is a concise list of EFF's ALPR state legislative goals.

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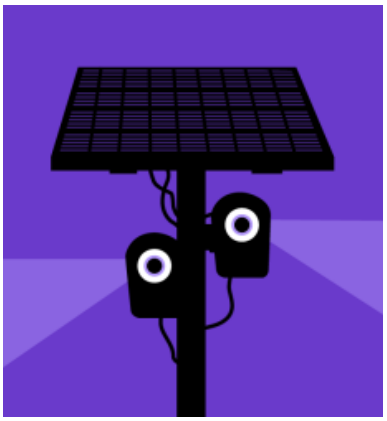
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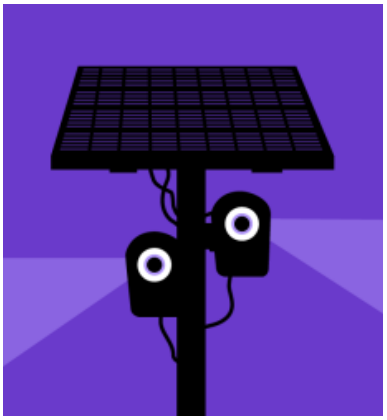
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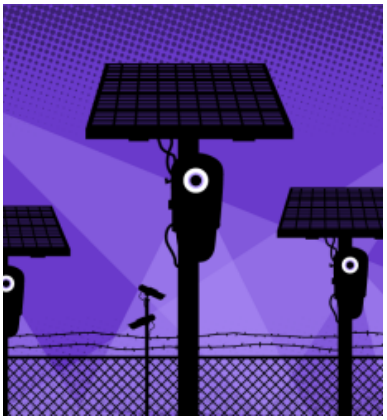
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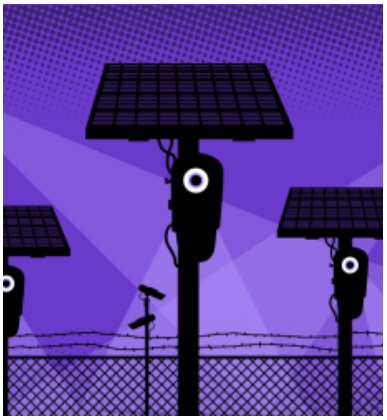
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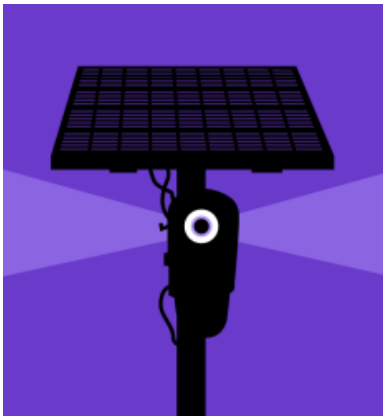
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